



POLICY P.127.TRA

TITLE: OTTAWA STUDENT TRANSPORTATION AUTHORITY

Date Authorized: 22 June 2009
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COMMITMENT TO INDIGENOUS RIGHTS, HUMAN RIGHTS, AND EQUITY

The District recognizes its responsibility to ensure that this policy and associated procedures promote and protect Indigenous rights, human rights, and equity. The District will strive to address and eliminate discrimination and structural and systemic barriers for students, staff, and community.

1.0 RATIONALE

To establish the authority of the Ottawa Student Transportation Authority to act as the Board's agent with respect to the provision of transportation services to students of the OttawaCarleton District School Board (OCDSB).

2.0 DEFINITIONS

Please refer to Appendix A for a list of definitions of terms used in this policy.

3.0 RESPONSIBILITY

Director of Education and the General Manager of Ottawa Student Transportation Authority.

4.0 POLICY

- 4.1 The Board shall recognize the Ministry of Education requirement for the provision of safe, effective, and efficient student transportation services through a consortia delivery model.
- 4.2 The Board shall recognize the Ottawa Student Transportation Authority (OSTA), a consortium established jointly by the Ottawa Catholic School Board and the Ottawa-Carleton District School Board, as its agent for the provision of student transportation services.
- 4.3 OSTA shall provide transportation services to OCDSB pupils as detailed in a service level agreement (SLA).

- 4.4 The Board shall establish transportation service standards to be included in the SLA with OSTA, including, but not limited to:
- a) eligibility standards based on distance, address (home or childcare), and program;
 - b) bell times over ten minutes; and
 - c) accessible transportation for students with special needs.
- 4.5 The components and service standards of the -SLA shall be presented to the Board prior to its execution.
- 4.6 The Director of Education will ensure that the structure of operating and/or SLAs with the Ottawa Student Transportation Authority (OSTA) satisfy the requirements of the Ministry of Education.

5.0 SPECIFIC DIRECTIVES

Appointments

- 5.1 In accordance with OSTA By-Laws, the Board shall have four representatives appointed to the OSTA Board of Directors, including:
- a) Director of Education;
 - b) Chief Financial Officer; and
 - c) two trustees.
- 5.2 In addition, the Board shall appoint two trustees to serve as alternate representatives to the OSTA Board of Directors. The Chair and Vice-Chair of the Board may serve as alternates if no appointed representatives are available.

Term of Office

- 5.3 Each appointed trustee representative shall normally be appointed for a two-year term. The terms shall be off-set by a year. Appointments will be made annually by the Board.
- 5.4 Each appointed alternate trustee representative shall be appointed for a one-year term. Appointments will be made annually by the Board.

Delegated Authority

- 5.5 The Board is responsible for establishing service eligibility standards for the transportation of its students. The Board shall delegate responsibility for service delivery standards to OSTA, including, but not limited to:
- a) student transportation;
 - b) empty seat management;
 - c) stop distances from home;

- d) bell time changes of 10 minutes or less;
- e) hazard zones;
- f) weighted vehicle loading capacity; and
- g) transportation for students in joint custody arrangements and having two homes.

5.6 The Board shall assign responsibility to the Board's representatives to:

- a) develop strategic direction and policy for OSTA;
- b) establish and perform ongoing reviews of the organizational structure and remuneration schedules of the employees of OSTA; and
- c) receive and review reports on the achievement of goals identified in the Service Level Agreement.

Financial Accountability

5.7 Prior to approving the annual OSTA budget, or interim budget adjustment, the Board's representatives shall:

- a) Seek a financial mandate from the OCDSB Board. If a financial mandate for the current budget year is not available, the previous year's budget mandate shall be applied; and
- b) Consult with the Board prior to any vote for material cost overruns of greater than 1 percent of the Board's financial mandate, or \$500,000 whichever is less, for transportation, excluding those costs resulting from bus route adjustments that are in keeping with the transportation policies until a service level agreement is executed.

Financial Accountability

5.8 In their capacity as OSTA Board members, the Board's representatives are responsible for:

- a) reviewing and approving the annual budget of OSTA;
- b) approving the cost sharing formulas between partner boards for transportation services; and
- c) establishing and performing ongoing reviews.

Communications

5.9 The Board's representatives are responsible for fostering and facilitating inter-board cooperation and sharing of information between OSTA and the OCDSB. This includes reporting regularly to the Board of Trustees and ensuring that the Board is aware of any major initiatives, challenges, and issues facing the OSTA Board of Directors.

Consultation

5.10 The District shall work in partnership with OSTA in undertaking major consultations with the stakeholder communities. Where required, the parties will collaborate.

Municipal Freedom of Information and Protection of Privacy Act (MFIPPA)

- 5.11 The District is responsible for the confidential records of all its students. However, in keeping with the provisions of existing legislation, the Board will delegate the authority for care, custody, control, and the responsibility for transportation records to OSTA. The District will work with the OSTA General Manager to manage requests under MFIPPA as required. This includes transportation records under the custody and control of OSTA.
- 5.12 The Director of Education is authorized to issue such procedures as may be necessary to implement this policy.

6.0 APPENDICES

Appendix A: Policy Definitions

7.0 REFERENCE DOCUMENTS

[Board Policy P.084.SCO: Student Safety Patrols](#)

[Board Procedure PR.530.SCO: Withdrawal of Transportation Privileges](#)

APPENDIX A: POLICY DEFINITIONS

In this policy,

Board means the Board of Trustees.

District means the Ottawa-Carleton District School Board.

Ottawa Student Transportation Authority (OSTA) means a consortium established jointly by the Ottawa Catholic School Board and the Ottawa-Carleton District School Board. the recognized agent for transportation services for the Ottawa-Carleton District School Board.